

25CHCV04406 25CHCV04406

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DEFENDANT TOYOTA MOTOR SALES, U.S.A., INC.'S MOTION TO
COMPEL THE DEPOSITION AND ACCOMPANYING DOCUMENT PRODUCTION OF PLAINTIFF JOSE
ALBERTO CORTEZ

Motion filed on August 6, 2026.

MOVING PARTY: Defendant Toyota Motor Sales, U.S.A., Inc.

RESPONDING PARTY: Plaintiff Jose Alberto Cortez

NOTICE: OK.

RELIEF REQUESTED: Defendant Toyota Motor Sales, U.S.A., Inc.
seeks an order compelling Plaintiff Jose Alberto Cortez to appear for
deposition and produce the documents identified in the deposition notice.
Defendant also requests \$1,600 in monetary sanctions against Plaintiff and his
counsel.

RULING: Granted in part. Sanctions denied.

BACKGROUND

Plaintiff Jose Alberto Cortez (Plaintiff) filed the Complaint against Defendant Toyota Motor Sales, U.S.A., Inc. (Defendant) on December 10, 2025. On August 6, 2026, Defendant filed this Motion to Compel the Deposition and Accompanying Document Production of Plaintiff. Defendant concurrently filed the Declaration of Aram Kuredjian with exhibits. No separate statement was filed. On August 25, 2026, Plaintiff filed an Opposition. On August 31, 2026, Defendant filed a Reply.

LEGAL STANDARD

A party may take the deposition of any person, including any party to the action. (Code Civ. Proc., § 2025.010.) “If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

“A motion under subdivision (a) shall comply with both of the following: (1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b).) “Although the statute appears to apply only if the deponent fails to both appear and produce documents, it has been held to apply simply on a deponent’s failure to appear.” (Leko v. Cornerstone Building Inspection Service (2001) 86 Cal.App.4th 1109, 1124.)

DISCUSSION

Procedural Issues

California Rules of Court, rule 3.1345 requires a separate statement for a motion involving the content of a discovery request or the response to such a request. The motions requiring a separate statement include a motion to compel answers at a deposition and a motion to compel or quash the production of documents or tangible things at a deposition. (Cal. Rules of Court, rule 3.1345(a)(4), (5).)

Here, no deposition examination occurred. Defendant seeks an order requiring Plaintiff to appear and testify, not an order compelling answers to questions posed at a deposition. The absence of a separate statement therefore does not preclude an order compelling Plaintiff's attendance and testimony.

Defendant also seeks production of 37 categories of documents identified in the deposition notice. (Kuredjian Decl., Ex. A.) Plaintiff served written objections to those requests on July 21, 2026. (Kuredjian Decl. ¶ 5, Ex. B.) Defendant did not file a separate statement as required by California Rules of Court, rule 3.1345(a)(5). For this reason, and for the additional reasons stated below, Defendant's request to compel document production is denied without prejudice.

Meet and Confer

A motion under section 2025.450 must be accompanied by a meet and confer declaration under section 2016.040 or, when the deponent fails to attend and produce the requested documents, a declaration stating that the moving party contacted the deponent to inquire about the nonappearance. (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Here, Defendant served Plaintiff with a deposition notice on July 13, 2026 for a July 28, 2026 deposition. (Kuredjian Decl. ¶ 4, Ex. A.) Defendant asked Plaintiff to provide alternative dates if the noticed date was unacceptable. (Kuredjian Decl. ¶ 7, Ex. D.) Plaintiff served objections on July 21, 2026 and requested that the parties schedule the deposition on a mutually agreeable date. (Kuredjian Decl. ¶ 5, Ex. B.) Defendant requested alternative dates on July 22, 2026. (Kuredjian Decl. ¶¶ 6-7, Ex. C.) Defendant followed up on July 27, 2026. (Kuredjian Decl. ¶ 7, Ex. C.) Plaintiff did not respond. (Kuredjian Decl. ¶¶ 6-8.) Plaintiff admits that counsel did not respond to either email. (Opp. at p. 3.)

The Court finds the meet and confer requirement satisfied.

Deposition

Section 2025.410 permits a party to object to a deposition notice that does not comply with Article 2 of Chapter 9. (Code Civ. Proc., § 2025.410, subd. (a).)

Here, Defendant served the notice on July 13, 2026 for a July 28, 2026 deposition. (Kuredjian Decl. ¶ 4, Ex. A.) Plaintiff objected that the deposition was unilaterally set for a date when Plaintiff and/or his counsel were unavailable and requested a mutually agreeable date. (Kuredjian Decl. ¶ 5, Ex. B.) Article 2 does not require the noticing party to obtain the deponent's agreement before selecting the deposition date. Plaintiff's asserted unavailability therefore does not establish an error or irregularity in the deposition notice under section 2025.410. Plaintiff's objection to the scheduled deposition date is overruled.

Plaintiff did not appear for the July 28, 2026 deposition. Defendant is therefore entitled to an order compelling Plaintiff's attendance and testimony under section 2025.450, subdivision (a).

Document Production

A motion under section 2025.450 seeking production of documents described in a deposition notice must set forth specific facts showing good cause justifying the production. (Code Civ. Proc., § 2025.450, subd. (b)(1).)

Here, Defendant's relevance discussion concerns Plaintiff's anticipated testimony regarding the alleged vehicle defects, repairs, service visits, and interactions with dealership personnel. (Mot. at p. 4.) Defendant does not set forth specific facts showing good cause for the 37 document requests identified in the deposition notice. (Kuredjian Decl., Ex. A.)

As discussed above, Defendant also failed to file the separate statement required by California Rules of Court, rule 3.1345(a)(5). Defendant therefore has not established entitlement to an order compelling document production. The request is denied without prejudice. The Court does not reach Defendant's waiver argument.

Sanctions

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.” (Code Civ. Proc., § 2023.040.) The request must also be accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought. (Ibid.)

Here, Defendant requests \$1,600 in monetary sanctions. Counsel states that Defendant incurred \$1,000 preparing the motion and anticipates an additional \$600 for reviewing the opposition, preparing the reply, and appearing at the hearing. (Kuredjian Decl. ¶ 10.) The declaration does not identify the hours expended or counsel's hourly rate. (Ibid.) The Court therefore cannot determine the basis for the \$1,600 amount requested.

Further, the Court finds Plaintiff had substantial justification for opposing the document production portion of the motion. Defendant sought to compel production of 37 categories of documents without filing the separate statement required by California Rules of Court, rule 3.1345(a)(5), and without setting forth specific facts showing good cause for the requested production as required by section 2025.450, subdivision (b)(1). Defendant also maintained that Plaintiff had not served written objections, although Defendant's own declaration establishes that Plaintiff served objections on July 21, 2026. (Mot. at p. 6; Kuredjian Decl. ¶ 5, Ex. B.)

Under these circumstances, the Court finds that imposition of the requested monetary sanction would be unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).) Defendant's request for sanctions is denied.

CONCLUSION

Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel the Deposition and Accompanying Document Production of Plaintiff Jose Alberto Cortez is GRANTED IN PART.

The motion is GRANTED as to Plaintiff's attendance and testimony. Plaintiff is ordered to appear for deposition within 30 days after notice of this ruling. Defendant shall serve an amended deposition notice in compliance with the Code of Civil Procedure.

The request to compel production of the documents identified in the deposition notice is DENIED WITHOUT PREJUDICE.

Defendant's request for \$1,600 in monetary sanctions is DENIED.